

AO 239 (Rev. 12/13) Application to Proceed in District Court Without Prepaying Fees or Costs (Long Form)

UNITED STATES DISTRICT COURT

for the

Northern District of Texas



KATHRYN COPELAND

Plaintiff/Petitioner

v.

WEINSTEIN MANAGEMENT CO., INC., et al.

Defendant/Respondent

Civil Action No.

**APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS
(Long Form)****Affidavit in Support of the Application**

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested. I declare under penalty of perjury that the information below is true and understand that a false statement may result in a dismissal of my claims.

Signed: Kathryn Copeland

Instructions

Complete all questions in this application and then sign it. Do not leave any blanks: if the answer to a question is "0," "none," or "not applicable (N/A)," write that response. If you need more space to answer a question or to explain your answer, attach a separate sheet of paper identified with your name, your case's docket number, and the question number.

Date: 5/12/26

1. For both you and your spouse estimate the average amount of money received from each of the following sources during the past 12 months. Adjust any amount that was received weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate. Use gross amounts, that is, amounts before any deductions for taxes or otherwise.

Income source	Average monthly income amount during the past 12 months		Income amount expected next month	
	You	Spouse	You	Spouse
Employment	\$ 0	\$ N/A	\$ 0	\$ N/A
Self-employment	\$ 0	\$ N/A	\$ 0	\$ N/A
Income from real property (<i>such as rental income</i>)	\$ 0	\$ N/A	\$ 0	\$ N/A
Interest and dividends	\$ 0	\$ N/A	\$ 0	\$ N/A
Gifts	\$ 0	\$ N/A	\$ 0	\$ N/A
Alimony	\$ 0	\$ N/A	\$ 0	\$ N/A
Child support	\$ 0	\$ N/A	\$ 0	\$ N/A

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Retirement (such as social security, pensions, annuities, insurance)	\$ 0	\$ N/A	\$ 0	\$ N/A
Disability (such as social security, insurance payments)	\$ 0	\$ N/A	\$ 2319	\$ N/A
Unemployment payments	\$ 0	\$ N/A	\$ 0	\$ N/A
Public-assistance (such as welfare)	\$ 0	\$ N/A	\$ 0	\$ N/A
Other (specify):	\$ 0	\$ N/A	\$ 0	\$ N/A
Total monthly income:	\$ 0	\$	\$ 2,319.00	\$

2. List your employment history for the past two years, most recent employer first. (Gross monthly pay is before taxes or other deductions.)

Employer	Address	Dates of employment	Gross monthly pay
Not employed (disabled)	See Question 11	6/8/2023 to present	\$ 0
Solo law practice (self)	Grapevine, Texas	Pre-6/8/2023	\$ See attachment

3. List your spouse's employment history for the past two years, most recent employer first. (Gross monthly pay is before taxes or other deductions.)

Employer	Address	Dates of employment	Gross monthly pay
			\$
			\$
			\$

4. How much cash do you and your spouse have? \$ Less than \$50

Below, state any money you or your spouse have in bank accounts or in any other financial institution.

Financial institution	Type of account	Amount you have	Amount your spouse has
See Question 11		\$	\$
		\$	\$
		\$	\$

If you are a prisoner, you must attach a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months in your institutional accounts. If you have multiple accounts, perhaps because you have been in multiple institutions, attach one certified statement of each account.

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5. List the assets, and their values, which you own or your spouse owns. Do not list clothing and ordinary household furnishings.

Assets owned by you or your spouse	
Home (Value)	\$ 0
Other real estate (Value)	\$ 0
Motor vehicle #1 (Value)	\$ 0
Make and year: N/A	
Model: N/A	
Registration #: N/A	
Motor vehicle #2 (Value)	\$ 0
Make and year:	
Model:	
Registration #:	
Other assets (Value)	\$ 0
Other assets (Value)	\$ 0

6. State every person, business, or organization owing you or your spouse money, and the amount owed.

Person owing you or your spouse money	Amount owed to you	Amount owed to your spouse
None	\$ 0	\$
	\$	\$
	\$	\$

7. State the persons who rely on you or your spouse for support.

Name (or, if under 18, initials only)	Relationship	Age
Q.C.	Daughter (minor)	14
P.C.	Daughter (minor)	10

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8. Estimate the average monthly expenses of you and your family. Show separately the amounts paid by your spouse. Adjust any payments that are made weekly, biweekly, quarterly, semiannually, or annually to show the monthly rate.

	You	Your spouse
Rent or home-mortgage payment <i>(including lot rented for mobile home)</i>		
Are real estate taxes included? ☐ Yes ☒ No	\$ 3300	\$ 3300
Is property insurance included? ☐ Yes ☒ No		
Utilities <i>(electricity, heating fuel, water, sewer, and telephone)</i>	\$ 100	\$ 100
Home maintenance <i>(repairs and upkeep)</i>	\$ 200	\$ 200
Food	\$ 500	\$ 500
Clothing	\$ 200	\$ 200
Laundry and dry-cleaning	\$ 25	\$ 25
Medical and dental expenses	\$ 500	\$ 500
Transportation <i>(not including motor vehicle payments)</i>	\$ 300	\$ 300
Recreation, entertainment, newspapers, magazines, etc.	\$ 150	\$ 150
Insurance <i>(not deducted from wages or included in mortgage payments)</i>		
Homeowner's or renter's: 3300	\$ 0	\$ 0
Life: 100	\$ 0	\$ 0
Health: 200	\$ 0	\$ 0
Motor vehicle: 500	\$ 0	\$ 0
Other: 200	\$ 0	\$ 0
Taxes <i>(not deducted from wages or included in mortgage payments) (specify):</i>	\$ 0	\$ 0
Installment payments		
Motor vehicle: 3300	\$ 0	\$ 0
Credit card <i>(name)</i> : 100	\$ 0	\$ 0
Department store <i>(name)</i> : 200	\$ 0	\$ 0
Other: 500	\$ 0	\$ 0
Alimony, maintenance, and support paid to others	\$ 1,345.60	\$ 1,345.60

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Regular expenses for operation of business, profession, or farm (<i>attach detailed statement</i>)	\$ 0	\$
Other (<i>specify</i>):	\$ 0	\$
Total monthly expenses:	\$ 6,620.60	\$ 0

9. Do you expect any major changes to your monthly income or expenses or in your assets or liabilities during the next 12 months?

☒ Yes ☐ No If yes, describe on an attached sheet.

10. Have you spent — or will you be spending — any money for expenses or attorney fees in conjunction with this lawsuit? ☐ Yes ☒ No

If yes, how much? \$ 0

11. Provide any other information that will help explain why you cannot pay the costs of these proceedings.

See ATTACHMENT A (Statement in Support of IFP Application). Plaintiff has been adjudicated indigent by both this Court (N.D. Tex. 4:25-cv-890-O, ECF No. 4, Aug. 21, 2025) and the Second Court of Appeals of Texas (No. 02-24-00278-CV, Sept. 17, 2024), and was found disabled since June 8, 2023 by the SSA Fully Favorable Decision dated April 10, 2026 (ALJ Roberts, Case No. 21MQ537F06341). Plaintiff has been homeless since October 27, 2025, has no regular income until SSDI commences on or about May 27, 2026, and has no assets. Plaintiff's SSDI back pay is subject to immediate interception under 42 U.S.C. § 659. Full details and supporting documentation are set forth in Attachment A.

12. Identify the city and state of your legal residence.
Grapevine, Texas

Your daytime phone number: (817) 789-8498

Your age: 40 Your years of schooling: 19+ (J.D.)

Last four digits of your social-security number: 9117

ATTACHMENT A
STATEMENT IN SUPPORT OF APPLICATION TO PROCEED IN FORMA
PAUPERIS

(AO-239, Question 11)

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION

KATHRYN COPELAND,
Plaintiff,

v.

WEINSTEIN MANAGEMENT CO., INC., et al.,
Defendants.

Civil Action No. _____

STATEMENT IN SUPPORT OF IFP APPLICATION

Plaintiff Kathryn Copeland respectfully submits this statement in support of her contemporaneously filed Application to Proceed in District Court Without Prepaying Fees or Costs (AO-239). This statement supplements Plaintiff's Answer to Question 11 of the AO-239 and provides the supporting documentation cross-referenced therein. Plaintiff is also a person with documented disabilities and submits this attachment as a reasonable accommodation for completing the long-form IFP application.

I. Prior Adjudications of Indigency

A. N.D. Tex. has previously granted Plaintiff IFP status. On August 21, 2025, the Honorable Reed O'Connor entered an Order in Copeland v. Tarrant County, Texas, et al., No. 4:25-cv-890-O (N.D. Tex.) (ECF No. 4), reviewing Plaintiff's financial affidavit and GRANTING her IFP application. The Order recited that "Copeland may proceed in this action without paying the \$405 filing and administrative fees" because she had "filed an application to proceed in forma pauperis" supported by a financial affidavit. Id. Plaintiff's financial

circumstances have not materially improved since that grant—they have deteriorated, as Plaintiff was rendered homeless on October 27, 2025.

B. Texas appellate court has independently adjudicated Plaintiff indigent. On September 17, 2024, the Second Court of Appeals of Texas, in *In re Q.C. and P.C.*, No. 02-24-00278-CV, granted Plaintiff's motion claiming material change in financial circumstances and ordered that she "proceed in this appeal without payment of costs," adopting the trial court's supplemental findings of fact that Plaintiff is legally indigent. Per Curiam Order, Sept. 17, 2024.

II. Federal Disability Determination

On April 10, 2026, the Social Security Administration issued a Notice of Decision—Fully Favorable in Plaintiff's case (Case No. 21MQ537F06341; ALJ Laura Roberts). The ALJ found that Plaintiff has been disabled within the meaning of the Social Security Act since June 8, 2023, the amended alleged onset date, and that Plaintiff has not engaged in substantial gainful activity since that date. (See SSA Notice of Decision and ALJ Decision, Findings of Fact and Conclusions of Law Nos. 2 and 11.) The ALJ identified severe impairments including: neoplasm of the brain, long-haul COVID, hiatal hernia, postural orthostatic tachycardia syndrome (POTS), Ehlers-Danlos Syndrome (EDS), polyarthralgia, ADHD, and intracranial hypotension. SSA payment processing is ongoing and regular SSDI/SSI benefits are expected to commence on or about May 27, 2026 in an amount yet to be determined by SSA.

III. Current Income, Expenses, and Assets

A. Income. Plaintiff has had no regular income since June 8, 2023. Plaintiff has sworn under penalty of perjury, in her May 6, 2026 Emergency Motion to Stay filed in 02-24-00278-CV, that she "currently has no stable housing, no other assets, and no regular income until May 27, 2026." Plaintiff has not received SSDI back pay as of the date of this filing. The amount of Plaintiff's regular monthly SSDI/SSI benefit has not yet been calculated by SSA.

B. Assets. Plaintiff has no real property, no vehicles, no investment accounts, no significant cash on hand (less than \$50), and no other assets of value beyond ordinary clothing and personal effects.

C. Monthly Expenses. Because Plaintiff has been homeless since October 27, 2025, her monthly expenses are minimal and predominantly supplemented by charitable food assistance, transient shelter arrangements, and SNAP. Plaintiff estimates approximately \$150/month in food expenses (above SNAP benefits) and \$50/month in transportation expenses for medical appointments.

D. Liabilities and Imminent Threat to Sole Income. Plaintiff currently owes child support arrearages accruing at a contested rate of \$1,042.60 per month under a May 2024 Final Order (231-686108-20, 231st JDC Tarrant County) which is the subject of Plaintiff's pending appeal in

02-24-00278-CV. That obligation was calculated on a contested finding that Plaintiff had \$4,170.40/month in net resources—a finding Plaintiff has sworn under penalty of perjury she "never had income at that level during the past five years." Pursuant to 42 U.S.C. § 659 and related federal law, the Texas Attorney General's Child Support Division has statutory authority to intercept Plaintiff's SSDI lump-sum back pay through the Federal Parent Locator Service and income withholding processes. Once intercepted, those funds cannot be recovered pending appeal.

IV. Dependents

Plaintiff has two minor daughters, Q.C. and P.C., both under 18. Plaintiff does not have primary possession of her children pending resolution of the appeal in 02-24-00278-CV; however, Plaintiff continues to bear support obligations as ordered by the Tarrant County court.

V. Inability to Pay

Based on the foregoing, Plaintiff respectfully states that she lacks the financial resources to pay the \$405 filing and administrative fee for this civil action, and respectfully requests leave to proceed in forma pauperis under 28 U.S.C. § 1915(a)(1). The financial showing made to N.D. Tex. in 4:25-cv-890-O, ECF No. 2 (Aug. 2025), remains accurate; Plaintiff's circumstances have materially worsened, not improved, since that filing.

VI. Unsworn Declaration

Pursuant to 28 U.S.C. § 1746, I declare under penalty of perjury that the foregoing is true and correct. Executed this 12th day of May, 2026, in Tarrant County, State of Texas.

Respectfully Submitted,



KATHRYN COPELAND

Pro Se Plaintiff

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

Tel: (817) 789-8498

Katie@KatieCopeland.com

Dated: May 12, 2026

EXHIBITS REFERENCED

1. SSA Notice of Decision — Fully Favorable, dated April 10, 2026 (Case No. 21MQ537F06341; ALJ Laura Roberts) — Findings of Fact Nos. 2 and 11 (disability finding and amended onset date).
2. Order granting IFP, Copeland v. Tarrant County, et al., No. 4:25-cv-890-O (N.D. Tex. Aug. 21, 2025) (ECF No. 4) (Reed O'Connor, J.).
3. Order granting motion claiming material change in financial circumstances, In re Q.C. and P.C., No. 02-24-00278-CV (Tex. App.—Fort Worth, Sept. 17, 2024) (Per Curiam).
4. Plaintiff's Emergency Motion to Stay Collection of Child Support Arrearage from SSDI Back Pay, In re Q.C. and P.C., No. 02-24-00278-CV (filed May 6, 2026) (sworn unsworn declaration of financial circumstances).



Office of Hearings Operations
ROOM 9A27
819 TAYLOR STREET
FORT WORTH, TX 76102-6124

Date: April 10, 2026

Kathryn Marie Copeland



Notice of Decision – Fully Favorable

I carefully reviewed the facts of your case and made the enclosed fully favorable decision. Please read this notice and my decision.

Although my decision is fully favorable, you have the right to an oral hearing and to examine the evidence on which I based my decision. Please contact the office listed above if you want to have an oral hearing or examine the evidence in your case record.



See Next Page

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

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If You Have Any Questions

1. Visit www.ssa.gov for fast, simple, and secure online service.
2. Call us at **1-800-772-1213**, weekdays from 8:00 am to 7:00 pm. If you are deaf or hard of hearing, call TTY **1-800-325-0778**. Please mention this notice and decision when you call.
3. You may also call your local office at (866) 704-4858.

SOCIAL SECURITY
RM 1-A-07 FEDERAL BLDG
819 TAYLOR ST
FORT WORTH, TX 76102-9844

Laura Roberts
Administrative Law Judge

Enclosures:
Decision Rationale

[REDACTED]

cc: SUSAN HARRIET BAXTER
600 EAST WEATHERFORD
FORT WORTH, TX 76102-3264

**SOCIAL SECURITY ADMINISTRATION
Office of Hearings Operations**

DECISION

IN THE CASE OF

Kathryn Marie Copeland
(Claimant)

(Wage Earner)

CLAIM FOR

Period of Disability, Disability Insurance
Benefits, and Supplemental Security Income

[REDACTED]
(Beneficiary Notice Control Number)

Social Security Number removed for your protection

JURISDICTION AND PROCEDURAL HISTORY

This case is before the undersigned on a request for hearing dated September 15, 2025 (20 CFR 404.929 *et seq.* and 416.1429 *et seq.*). The evidence of record supports a fully favorable decision; therefore no hearing has been held (20 CFR 404.948(a) and 416.1448(a)). The claimant is represented by Susan Baxter, a non-attorney representative (Exhibit 20B).

The claimant has amended the alleged onset date of disability to June 8, 2023 (Exhibit 13D).

FINDINGS OF FACT AND CONCLUSIONS OF LAW

After careful consideration of the entire record, the undersigned makes the following findings:

■ [REDACTED]

■ [REDACTED]
[REDACTED]
[REDACTED].

3. The claimant has the following severe impairments: neoplasm of the brain, long haul Covid, hiatal hernia, postural orthostatic tachycardia syndrome (POTS), Ehlers-Danlos Syndrome (EDS), polyarthralgia, attention deficit hyperactivity disorder (ADHD), [REDACTED]

[REDACTED], intracranial hypotension, [REDACTED]
(20 CFR 404.1520(c) and 416.920(c)).

■ [REDACTED]
[REDACTED]
[REDACTED]

5. [REDACTED]

She can tolerate no concentrated exposure to dust, fumes, odors, gases or other pulmonary irritants. The claimant can understand, remember and carry out detailed, but not complex, instructions. She will be off task 20% of the time, she will need one hour of additional breaks, and she will miss two days of work per month.

In making this finding, the undersigned has considered all symptoms and the extent to which these symptoms can reasonably be accepted as consistent with the objective medical evidence and other evidence, based on the requirements of 20 CFR 404.1529 and 416.929 and SSR 16-3p. The undersigned also considered the medical opinion(s) and prior administrative medical finding(s) in accordance with the requirements of 20 CFR 404.1520c and 416.920c.

The claimant has the following degree of limitation in the four broad areas of mental functioning set out in the disability regulations for evaluating mental disorders and in the mental disorders listings in 20 CFR, Part 404, Subpart P, Appendix 1: a moderate limitation in understanding, remembering, or applying information; a mild limitation in interacting with others; a moderate limitation in concentrating, persisting, or maintaining pace; and a moderate limitation in adapting or managing oneself.

[REDACTED]

After careful consideration of the evidence, the undersigned finds that the claimant's medically determinable impairments could reasonably be expected to cause the alleged symptoms. The claimant's statements concerning the intensity, persistence and limiting effects of these symptoms are reasonably consistent with the medical evidence and other evidence in the record for the reasons explained in this decision.

The intensity of the claimant's physical and cognitive symptoms, and the extent of the alleged functional limitations, are supported by objective findings and the record of medical treatment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The description of the symptoms and limitations which the claimant has provided throughout the record has generally been consistent and persuasive. Neurology reports from 2025 and 2026 document that the claimant experienced worsening neurological symptoms, severe tremors, postural headache, dizziness and brain fog (Exhibit 68F). She was diagnosed with intracranial hypotension in the setting of EDS and prior trauma, for which additional testing was recommended to assess a possible cerebrospinal fluid leak (Exhibit 68F/10). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

The claimant's allegations are supported by multiple doctor statements. Primary care doctor, John Bui M.D. submitted a statement in September 2023 noting diagnoses of ADHD, Covid Long Hauler, POTS disease, and Vestibular schwannoma (Exhibit 25F/2). He noted symptoms of fatigue, poor focus, confusion, dizziness and memory issues, and opined that the claimant required learning accommodations such as a flexible schedule, and more time to complete assignments. In March 2025, Dr. Bui submitted a statement noting diagnoses of vestibular schwannoma, EDS, post covid, and MALS. He opined that the claimant was unable to stand or walk for extended periods due to orthostatic intolerance and EDS-related joint instability; she could not maintain seated positions for extended periods without symptom exacerbation; and she required frequent position changes and rest periods throughout the day. He noted that the claimant experienced unpredictable symptom flares requiring complete rest; she could not reliably sustain concentration for work-related tasks; and she experienced significant post-exertional malaise following minimal physical or cognitive exertion (Exhibit 44F/68). The undersigned finds these opinions persuasive, as they are supported by the objective evidence of joint instability and cognitive impairment.

[REDACTED]

[REDACTED]

[REDACTED]

Dr. Kayster submitted a statement in February 2026 and notes diagnoses of intracranial hypotension and cognitive impairment, with dizziness, imbalance, and positional neurologic symptoms that worsened with upright posture (sitting/standing) and improved with recumbency (Exhibit 69F). He noted objective findings of slowed responses and delayed recall; deficits in sustained attention, selective attention, processing speed, and speeded word retrieval; and abnormal brain MRI findings and neuro-ophthalmology testing. He opined that the claimant required frequent recumbency throughout the day and she could not sustain predictable function for prolonged periods. He found the claimant could sit, stand or walk for less than 2 hours in an 8-hour workday, and she demonstrated marked limitations in areas of memory, concentration and adaptation. The undersigned finds this opinion persuasive as it is supported by objective findings and the history of treatment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

In summary, the undersigned finds the objective findings are consistent with, and support a limitation to, sedentary exertional activities. The claimant's chronic fatigue, widespread pain, weakness and instability, limit her to lifting up to 10 pounds, limit her to standing/walking for 2 hours in an 8-hour workday and prevent her from crouching, crawling or climbing ladders, ropes or scaffolds. She can occasionally climb ramps/stairs, balance, stoop, and kneel, to avoid exacerbations of pain or fatigue. Due to severe orthostatic intolerance, she cannot perform work involving any exposure to extreme hot temperatures (defined as over 90 degrees), extreme cold temperatures (defined as under 30 degrees), excessive humidity (defined as over 80%), dangerous moving machinery, unprotected heights or vibrations as defined by the SCO. She can tolerate no concentrated exposure to dust, fumes, odors, gases or other pulmonary irritants

See Next Page

because of residual Covid symptoms. The claimant can understand, remember and carry out detailed, but not complex, instructions, to account for moderate limitations in her ability to understand, remember and apply information, concentrate, persist or maintain pace, and adapt and manage herself. She will be off task 20% of the time, she will need one hour of additional breaks, and she will miss two days of work per month, because of intracranial hypotension and cognitive impairment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

10. Considering the claimant's age, education, work experience, and residual functional capacity, there are no jobs that exist in significant numbers in the national economy that the claimant can perform (20 CFR 404.1560(c), 404.1566, 416.960(c), and 416.966).

[REDACTED]

11. The claimant has been under a disability as defined in the Social Security Act since June 8, 2023, the amended alleged onset date of disability (20 CFR 404.1520(g) and 416.920(g)).

DECISION

Based on the application for a period of disability and disability insurance benefits filed on May 28, 2023, the claimant has been disabled under sections 216(i) and 223(d) of the Social Security Act since June 8, 2023.

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

/s/ *Laura Roberts*

Laura Roberts
Administrative Law Judge

April 10, 2026

Date

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION

KATHRYN COPELAND,

Plaintiff,

VS.

TARRANT COUNTY, TEXAS, *et al.*,

Defendants.

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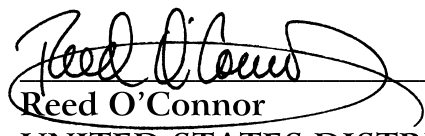
Civil Action No. 4:25-cv-890-O

ORDER

Plaintiff Kathryn Copland filed an application to proceed *in forma pauperis* (IFP) in this counseled civil-rights action. *See* Appl., ECF No. 2. After reviewing Copland's financial affidavit, the Court **GRANTS** her application. Copland may proceed in this action without paying the \$405 filing and administrative fees.

Because Copland is proceeding IFP, this case is governed by the applicable provisions of 28 U.S.C. § 1915.

SO ORDERED this 21st day of August, 2025.


Reed O'Connor
UNITED STATES DISTRICT JUDGE



**In the
Court of Appeals
Second Appellate District of Texas
at Fort Worth**

No. 02-24-00278-CV

IN THE INTEREST OF Q.C. AND P.C., CHILDREN

On Appeal from the 231st District Court
Tarrant County, Texas
Trial Court No. 231-686108-20

ORDER

On July 11, 2024, appellant filed an “Appellant’s Supplement to her Motion for Reconsideration and Reassessment of Indigency Determination,” claiming that her financial circumstances had materially changed since the trial court’s May 31, 2024 order requiring her to pay costs. *See* Tex. R. App. P. 20.1(b)(3). The appellee and the court reporter filed objections to appellant’s “Supplement,” so we abated the appeal and referred the motion to the trial court to issue findings of fact on appellant’s ability to afford court costs. *See id.*

The trial court’s supplemental record was filed in this court on September 9, 2024, which included the trial court’s order finding that appellant is now indigent and

is not required to pay costs. Accordingly, we grant appellant's motion claiming a material change in appellant's financial circumstances and likewise order that appellant shall proceed in this appeal without payment of costs.

The clerk and reporter's record are due **September 30, 2024**.

We direct the clerk of this court to send a notice of this order to the appellant, all lead counsel on appeal, the trial court judge, the trial court clerk, and the court reporter.

Dated September 17, 2024.

Per Curiam

No. 02-24-00278-CV

**In the Court of Appeals for the
Second District of Texas at Fort Worth**

In The Interest of Q.C. and P.C., Children

Kathryn Copeland, Appellant

v.

Christopher Copeland, Appellee

**On Appeal from the 231st Judicial District Court, Tarrant County, Texas
Cause No. 231-686108-20, Honorable Judith Wells, Presiding by appointment**

**APPELLANT’S EMERGENCY MOTION TO STAY COLLECTION OF
CHILD SUPPORT ARREARAGE FROM SSDI BACK PAY PENDING
RESOLUTION OF APPEAL**

**RULING REQUESTED ON EXPEDITED BASIS — SSDI BACK PAY SUBJECT TO
IMMEDIATE INTERCEPTION**

Respectfully Submitted,

Kathryn Copeland

KATHRYN COPELAND

Pro Se Appellant

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

Katie@KatieCopeland.com

Dated: May 6, 2026

TO THE HONORABLE JUSTICES OF THE SECOND COURT OF APPEALS:

Appellant Kathryn Copeland respectfully moves this Court for emergency relief staying collection and interception of her Social Security Disability Insurance (“SSDI”) back pay pending resolution of this appeal. In support, Appellant shows the following:

I. INTRODUCTION

This Court has already accepted, as established in the record, that Appellant is indigent. (See Order dated September 17, 2024.) The Social Security Administration has now independently confirmed the disability underlying that indigency through a Notice of Fully Favorable Decision dated April 10, 2026. Appellant’s SSDI back pay is expected to be released imminently. The Texas Attorney General’s Child Support Division is positioned to intercept that payment upon receipt under federal income withholding authority.

The child support obligation being enforced was calculated based on net resources of \$4,170.40 per month that Appellant no longer has—resources this Court has already accepted, through its indigency ruling, no longer exist. The underlying order was also entered following proceedings infected by unaccommodated disability and ADA access barriers now before this Court on appeal. Allowing the

AG to intercept Appellant's only financial lifeline before this Court rules would cause irreparable harm that no subsequent order can remedy.

II. BACKGROUND

A. The Underlying Child Support Order

The final order on appeal, signed May 31, 2024, ordered Appellant to pay child support of \$1,042.60 per month, based on the trial court's finding that Appellant's net monthly resources were \$4,170.40. Trial Court Cause No. 231-686108-20; Final Order § 13.1–13.2. That obligation has been accruing and is now the subject of AG collection action.

B. This Court Has Already Accepted Appellant's Indigency

On September 17, 2024, this Court granted Appellant's motion claiming a material change in financial circumstances and ordered that Appellant proceed in this appeal without payment of costs. That ruling accepted the trial court's September 6, 2024 findings of fact establishing that Appellant is now indigent and unable to afford court costs. This Court issued the following Order:

On July 11, 2024, appellant filed an "Appellant's Supplement to her Motion for Reconsideration and Reassessment of Indigency Determination," claiming that her financial circumstances had materially changed since the trial court's May 31, 2024 order requiring her to pay costs. See Tex. R. App. P. 20.1(b)(3). The appellee and the court reporter filed objections to appellant's "Supplement," so we abated the appeal and referred the motion to the trial court to issue findings of fact on appellant's ability to afford court costs. See *id.*

The trial court's supplemental record was filed in this court on September 9, 2024, which included the trial court's order finding that appellant is now indigent and is not required to pay costs. Accordingly, we grant appellant's motion claiming a material change in appellant's financial circumstances and likewise order that appellant shall proceed in this appeal without payment of costs.

...

Dated September 17, 2024.

Per Curiam

Appellant's net resources have thus fallen from the \$4,170.40 per month used to calculate her child support obligation to a level the trial court found constitutes legal indigency—a material change this Court has already accepted as true and incorporated into its own orders.

C. Federal Disability Determination Independently Confirms

Appellant's Disability

On April 10, 2026, the Social Security Administration issued a Notice of Fully Favorable Decision finding Appellant disabled since June 8, 2023. (Exhibit A, *SSA Notice of Fully Favorable Decision and ALJ Decision*, Finding Nos. 2 and 11.) This federal determination: (1) independently confirms the disability Appellant has documented throughout these proceedings; (2) explains the income collapse underlying the indigency this Court accepted; and (3) materially corroborates the ADA and due process arguments already before this Court on appeal. The SSDI award does not create Appellant's disability—it confirms it. Appellant requests this Court take judicial notice of the SSA's determination of disability under Texas Rule

of Evidence 201 as a fact not subject to reasonable dispute, and offers to provide the complete ALJ Decision for in camera review upon request.

D. The May 2024 Order Tripled Child Support Based on Income Appellant Never Had

The August 2023 trial ruling letter—the order in effect before the final order now on appeal—set Appellant’s child support obligation at \$346.90 per month. (Clerk's Record at 142–146.) The May 2024 final order more than tripled that obligation to \$1,042.60 per month based on a finding that Appellant had \$4,170.40 in monthly net resources.

Appellant has never had income at that level during the past five years. Nothing material changed in Appellant’s financial circumstances between August 2023 and May 2024 that would justify tripling the child support obligation. The income finding underlying the May 2024 order was contested, but Appellant was unable to meaningfully challenge it because of the unaccommodated disability now independently confirmed by the SSDI federal determination. The child support arrearage now subject to interception was calculated at an inflated rate—based on income Appellant never earned—and this fundamental inequity is itself a merits argument currently before this Court on appeal.

E. Imminent and Irreparable Harm from SSDI Back Pay Interception

Appellant's SSDI back pay is expected to be released imminently. Under 42 U.S.C. § 659 and related federal law, the Texas AG's Child Support Division has statutory authority to intercept SSDI lump-sum payments for child support arrearage through the Federal Parent Locator Service and income withholding processes.

Appellant currently has no stable housing, no other assets, and no regular income until May 27, 2026. Once the back pay is intercepted, those funds cannot be recovered pending appeal. The harm is immediate, concrete, and irreversible.

III. BASIS FOR RELIEF

A. This Court Has Authority to Stay Enforcement Pending Appeal

The Texas Family Code expressly authorizes courts of appeals to render temporary orders in suits affecting the parent-child relationship pending final disposition of an appeal. Tex. Fam. Code § 109.001(a). This Court also has inherent authority to issue orders necessary to protect its jurisdiction and prevent irreparable harm pending its judgment.

B. The Standard for Emergency Relief Is Satisfied

The relevant equities weigh heavily in Appellant's favor:

- 1. Substantial Question on Appeal.** This appeal raises unresolved ADA and due process arguments, including whether disability-related access barriers infected the proceedings that produced the

child support order. The SSDI award adds federal corroboration to those arguments that was not available at the time of trial.

2. Irreparable Harm to Appellant. Interception of SSDI back pay is permanent. Appellant has no stable housing, no other income, and no assets. Loss of this payment cannot be remedied by any subsequent ruling.

3. The Child Support Was Calculated on Income Appellant Never Had—and No Prior Order Supports the Finding. Before the May 2024 final order, the August 2023 trial order set child support at \$346.90 per month. Nothing changed between August 2023 and May 2024 that would justify more than tripling the obligation. The final order's finding of \$4,170.40 in monthly net resources was contested but could not be meaningfully challenged by Appellant due to unaccommodated disability. Appellant's actual income, as now confirmed by this Court's indigency finding and the SSDI award, has never approached the level used to calculate the current arrearage. Collecting arrearage accrued at an inflated rate—based on income Appellant never earned—is fundamentally inequitable and compounds the ADA violations already before this Court.

4. No Irreversible Harm to Appellee from a Stay. Child support arrearage continues to accrue and would remain payable if Appellee prevails on appeal. A temporary stay of interception causes no irreversible prejudice to Appellee or the children.

5. Fifth Circuit Court of Appeals Judge Haynes Found Merit to Emergency Relief Claims. Although the Fifth Circuit denied emergency relief, Judge Haynes would have temporarily granted the requested injunction and carried the matter with the case for merits consideration, confirming that Appellant's Title II and access-to-courts arguments present serious and substantial questions rather than frivolous claims.¹

6. Additional Context Provided in Separate Concurrent Filing.

Appellant notes that concurrently with this motion she has filed an *Emergency Motion to Stay Enforcement of the Vexatious Litigant Prefiling Order*, which provides additional context regarding the pending Fifth Circuit proceedings and the medical urgency affecting the children that underlies both motions.

¹ On May 6, 2026, the Fifth Circuit Court of Appeals issued an order in Case No. 26-10389 (*Copeland v. Tarrant County, et. al.*) denying Applicant's motion for injunction pending appeal. However, Judge Haynes specifically noted she would grant the motion temporarily and carry the case for the merits panel. This separate position demonstrates that the legal theory underlying Applicant's emergency relief request has merit and warrants judicial consideration.

IV. PRAYER

Appellant respectfully requests that this Court:

1. Issue an emergency order staying collection and interception of Appellant's SSDI back pay for child support arrearage pending resolution of this appeal or further order of this Court;
2. Direct the Texas Attorney General's Child Support Division to refrain from intercepting or garnishing Appellant's SSDI back pay pending further order of this Court;
3. Rule on this Motion on an emergency basis no later than May 16, 2026, given that Appellant's SSDI back pay is expected to be released imminently and interception is immediate, automatic, and irreversible; and
4. Grant such other and further relief as this Court deems just and appropriate.

Respectfully Submitted,



KATHRYN COPELAND

Pro Se Appellant

State Bar No. 24086056

1137 S. Pine Street

Grapevine, Texas 76051

Katie@KatieCopeland.com

Dated: May 6, 2026

**UNSWORN DECLARATION PURSUANT TO
TEX. CIV. PRAC. & REM. CODE 132.001**

My name is Kathryn Marie Copeland, my date of birth is June 28, 1985 and my current address is 1137 S. Pine Street, Grapevine, Texas 76051 in the United States of America. I am the Appellant in the above-captioned proceeding and I am competent to make this declaration.

Attached hereto as Exhibit A is a true and correct copy of the Social Security Administration's Notice of Fully Favorable Decision dated April 10, 2026, and selected pages of the Administrative Law Judge's Decision (ALJ Laura Roberts, Beneficiary Notice Control Number 21MQ537F06341), consisting of Decision Finding Nos. 2 and 11, reflecting that Appellant has been found disabled under the Social Security Act since June 8, 2023, and that Appellant has not engaged in substantial gainful activity since June 8, 2023. I received Exhibit A on April 10, 2026.

I declare under penalty of perjury that the foregoing is true and correct.

Executed in Tarrant County, State of Texas, on the 6th day of May 2026.

A handwritten signature in black ink that reads "Kathryn Copeland". The signature is written in a cursive, flowing style.

KATHRYN COPELAND

CERTIFICATE OF CONFERENCE

As required by TRAP 10.1(a)(5) and 2nd Tex. App. (Fort Worth) Loc. R. 3.B., I certify that the following diligent attempts were made to confer with Susan F. Smith, counsel for Appellee, but a conference was not held because: Appellant emailed opposing counsel on May 6, 2026 regarding this emergency motion concurrent with filing, but has not received a response prior to filing. Due to the imminent and irreversible nature of the threatened interception, delay for a conference is not feasible. Appellee's position on this motion is unknown.



KATHRYN COPELAND

CERTIFICATE OF SERVICE

I certify that a true copy of this *Emergency Motion to Stay Collection of Child Support Arrearage from SSDI Back Pay* was served on all parties on May 6, 2026, in accordance with Tex. R. App. P. 9.5.



KATHRYN COPELAND

**SOCIAL SECURITY ADMINISTRATION
Office of Hearings Operations**

DECISION

IN THE CASE OF

Kathryn Marie Copeland
(Claimant)

(Wage Earner)

CLAIM FOR

Period of Disability, Disability Insurance
Benefits, and Supplemental Security Income

[REDACTED]
(Beneficiary Notice Control Number)

Social Security Number removed for your protection

JURISDICTION AND PROCEDURAL HISTORY

This case is before the undersigned on a request for hearing dated September 15, 2025 (20 CFR 404.929 *et seq.* and 416.1429 *et seq.*). The evidence of record supports a fully favorable decision; therefore no hearing has been held (20 CFR 404.948(a) and 416.1448(a)). The claimant is represented by Susan Baxter, a non-attorney representative (Exhibit 20B).

The claimant has amended the alleged onset date of disability to June 8, 2023 (Exhibit 13D).

FINDINGS OF FACT AND CONCLUSIONS OF LAW

After careful consideration of the entire record, the undersigned makes the following findings:

1. [REDACTED]

2. The claimant has not engaged in substantial gainful activity since June 8, 2023, the amended alleged onset date (20 CFR 404.1520(b), 404.1571 *et seq.*, 416.920(b) and 416.971 *et seq.*).

[REDACTED]

[REDACTED]

See Next Page

[REDACTED] The claimant can understand, remember and carry out detailed, but not complex, instructions, to account for moderate limitations in her ability to understand, remember and apply information, concentrate, persist or maintain pace, and adapt and manage herself. She will be off task 20% of the time, she will need one hour of additional breaks, and she will miss two days of work per month, because of intracranial hypotension and cognitive impairment.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

10. Considering the claimant's age, education, work experience, and residual functional capacity, there are no jobs that exist in significant numbers in the national economy that the claimant can perform (20 CFR 404.1560(c), 404.1566, 416.960(c), and 416.966).

If the claimant had the residual functional capacity to perform the full range of sedentary work, considering the claimant's age, education, and work experience, a finding of "not disabled" would be directed by Medical-Vocational Rule 201.27. However, the additional limitations so narrow the range of work the claimant might otherwise perform that a finding of "disabled" is appropriate under the framework of this rule.

11. The claimant has been under a disability as defined in the Social Security Act since June 8, 2023, the amended alleged onset date of disability (20 CFR 404.1520(g) and 416.920(g)).

DECISION

Based on the application for a period of disability and disability insurance benefits filed on May 28, 2023, the claimant has been disabled under sections 216(i) and 223(d) of the Social Security Act since June 8, 2023.

Based on the application for supplemental security income filed on May 28, 2023, the claimant has been disabled under section 1614(a)(3)(A) of the Social Security Act since June 8, 2023. Supplemental security income does not become payable until the month after the month in which the application is filed (20 CFR 416.335).

The component of the Social Security Administration responsible for authorizing supplemental security income will advise the claimant regarding the nondisability requirements for these payments and, if the claimant is eligible, the amount and the months for which payment will be made.

/s/ *Laura Roberts*

Laura Roberts
Administrative Law Judge

April 10, 2026

Date

United States Court of Appeals
for the Fifth Circuit

No. 26-10389

United States Court of Appeals
Fifth Circuit

FILED

May 6, 2026

Lyle W. Cayce
Clerk

KATHRYN COPELAND,

Plaintiff—Appellant,

versus

TARRANT COUNTY, TEXAS; OFFICE OF COURT
ADMINISTRATION; JUDITH WELLS; KENNETH NEWELL; DAVID
EVANS,

Defendants—Appellees.

Appeal from the United States District Court
for the Northern District of Texas
USDC No. 4:25-CV-890

UNPUBLISHED ORDER

Before SMITH, HAYNES, and OLDHAM, *Circuit Judges*.

PER CURIAM:

IT IS ORDERED Appellant's opposed motion for injunction pending appeal is DENIED.¹

¹ Judges Haynes would grant temporarily and carry with the case for the merits panel to decide whether to maintain the injunction pending appeal.

Automated Certificate of eService

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Filing Code Description: Motion for Emergency Relief

Filing Description: Appellant's Emergency Motion to Stay Collection of Child Support Arrearage from SSDI Back Pay Pending Resolution of Appeal

Status as of 5/7/2026 10:12 AM CST

Case Contacts

Name	BarNumber	Email	TimestampSubmitted	Status
Susan Smith	24070644	susan@susansmithfamilylaw.com	5/7/2026 12:05:49 AM	SENT
Katherine Allen	24040413	kallen@allenweaver.com	5/7/2026 12:05:49 AM	SENT
André L. Smith		paralegal@susansmithfamilylaw.com	5/7/2026 12:05:49 AM	SENT
K. C.		kcopelandlaw@gmail.com	5/7/2026 12:05:49 AM	SENT
Deterrean Gamble		deterrean.gamble@oag.texas.gov	5/7/2026 12:05:49 AM	SENT
Nicole Loya		nicole.loya@oag.texas.gov	5/7/2026 12:05:49 AM	SENT
Matthew Deal		matthew.deal@texasattorneygeneral.gov	5/7/2026 12:05:49 AM	SENT
Christopher Copeland		cjcopeland@gmail.com	5/7/2026 12:05:49 AM	SENT
John Allen Douglas		John@JADouglasLaw.com	5/7/2026 12:05:49 AM	SENT